



POLICE DEPARTMENT

June 3, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Diery Louis
Tax Registry No. 940395
81 Precinct
Disciplinary Case No. 2011-5115

The above-named member of the Department appeared before me on November 21, 2014 and February 5, 2015, charged with the following:

1. Said Police Officer Diery Louis, assigned to the 81st Precinct, while on-duty, on or about February 14, 2010, located in Kings County, was discourteous to Assistant District Attorney [REDACTED] to wit: said Police Officer Louis raised his voice and began yelling in sum and substance: "I know the facts of my case and I have discretion on who I arrest on the street."

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT – GENERAL
GENERAL REGULATIONS

2. Said Police Officer Diery Louis, assigned to the 81st Precinct, while on-duty, on or about February 14, 2010, located in Kings County, was discourteous to Sergeant Sylvia Smith to wit: said Police Officer Louis raised his voice in loud manner.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
GENERAL REGULATIONS

3. Said Police Officer Diery Louis, assigned to the 81st Precinct, while on-duty, on or about May 12, 2011, located in Kings County, did fail and neglect to maintain a clean appearance, in that Police Officer Louis was unshaven while in uniform.

P.G. 203-07, Page 2, Paragraph 10 PERFORMANCE ON DUTY/PERSONAL
APPEARANCE

COURTESY • PROFESSIONALISM • RESPECT

4. Said Police Officer Diery Louis, assigned to the 81st Precinct, while on-duty, on or about February 14, 2010, located in Kings County, did fail and neglect to provide a clear indication of the identity of the individual he placed under arrest and the location of the arrest in said officer's Activity Log (PD 112-145), as required. (*As amended*)

P.G. 212-08, Page 1 and 2 ACTIVITY LOGS- COMMAND OPERATIONS

5. Said Police Officer Diery Louis, assigned to the 81st Precinct, while on-duty, on or about February 14, 2010, located in Kings County, did fail and neglect to conduct a proper investigation, to wit, Police Officer Louis did fail and neglect to check a purse in the possession of an arrestee at the scene to determine the true and correct owner. (*As amended*)

P.G. 202-21, Page 1, Paragraph 8 – POLICE OFFICER- DUTIES AND RESPONSIBILITIES

The Department was represented by Javier Seymore, Esq., and Respondent was represented by Craig R. Hayes, Esq. of Worth Longworth & London, LLP.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Sylvia Smith and Lieutenant Mark DeFazio as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specification Nos. 2, 3 and 4. Respondent is found Not Guilty of Specification Nos. 1 and 5.

FINDINGS AND ANALYSIS

The following is a summary of the relevant facts. On the evening of February 14, 2010, Respondent performed a 1630 by 0135 tour in the Condition Unit of the 81 Precinct. (Tr. 73). Around 2245 hours, he pulled a vehicle over on Putnam Avenue,

having observed a broken headlight. (Id.). There were three individuals in the car- a female driver, a male in the front passenger seat and a female in the rear passenger seat. (Tr. 42, 74). Respondent shined his flashlight into the car and observed an open purse in the backseat behind the driver with a large Ziploc bag containing a substance he believed to be marijuana. (Tr. 75).

Respondent asked the driver for her license and registration and she removed them from a medium-sized blue wallet. (Id.). As she did so, Respondent saw another Ziploc bag containing marijuana in the wallet. (Id.). He requested that the driver exit the vehicle. (Tr. 76). According to Respondent, the driver then stated that the purse in the backseat belonged to her. (Id.). Respondent thereafter placed the driver, [REDACTED] under arrest but did not arrest the other two individuals. (Tr. 77).

Respondent brought the driver to the 81 Precinct. (Tr. 78). Once there, she stated to Respondent that the purse in the backseat was not hers and belonged to the other female in the vehicle. (Id.). At this point, Respondent opened the bag for the first time to search for identification. (Id.). He found a phone bill bearing the name [REDACTED] [REDACTED] (Tr. 67, 78).

Respondent then conferred with his supervisor and suggested that he would call the number on the phone bill, tell the individual named on the bill to come to the precinct to retrieve the vehicle and place her under arrest upon arrival. (Tr. 79). That individual did return to the precinct a short while later and admitted that the purse in the backseat belonged to her. (Tr. 80). She was arrested at approximately 0015 hours for possession of a controlled substance in the seventh degree. (Id.).

Respondent made entries in his Activity Log related to the car stop and subsequent arrests. (Department's Exhibit ("DX") 1). The Activity Log does not reference the arrested individual by name.

Respondent subsequently contacted the District Attorney's Office that same night and ADA 1 returned his call a few hours later. (Tr. 81-82). Respondent took the call in the lodge area by the prisoner cells and admitted his voice was raised at some point during the call. (Tr. 82, 86). Shortly thereafter, Respondent spoke to Sergeant Sylvia Smith, the desk officer of the Early Case Assessment Bureau ("ECAB"). (Tr. 13-15). Ultimately, the District Attorney's Office declined to prosecute either arrest. (Tr. 64).

Respondent had an official Department interview on May 12, 2011 regarding the events of February 14, 2010. He arrived for the interview unshaven. (Tr. 94, 99).

Specification 1: Discourtesy to ADA 1

~~Respondent stands charged with being discourteous to Assistant District Attorney~~ Respondent stands charged with being discourteous to Assistant District Attorney 1, in that Respondent raised his voice and began yelling and said: "I know the facts of my case and I have discretion on who I arrest on the street." ADA 1 was unable to testify as he is on long-term leave due to illness.

Courts rely on a number of factors to assess hearsay, including the identity of the hearsay declarant, the availability of the declarant to testify, the declarant's personal knowledge of the facts, the independence or bias of the declarant, the detail and range of the hearsay, the degree to which it is corroborated and the centrality of the hearsay evidence to the agency's case. *See Richardson v. Perales*, 402 U.S. 389 (1971). The tribunal understands that ADA 1 had a medical issue that prevented him from

testifying at trial. However, his out-of-court statement is largely determinative of the outcome here. It is axiomatic that the more central and important the hearsay is to the case, the more serious the question of basic fairness becomes and the more critically it should be assessed. See *Matter of 125 Bar Corp. v. State Liquor Authority of the State of N.Y.*, 24 N.Y.2d 174 (1969). With no evidence other than the statements of ADA I and Respondent, cross-examination is needed to determine the details and the reliability of ADA I's account. Because the Department proffered no evidence other than hearsay statements, I find that it has failed to prove discourtesy by a preponderance of the credible evidence.

ADA I was interviewed by Lieutenant DeFazio of the Internal Affairs Bureau ("IAB") regarding his conversation with Respondent. According to DeFazio, ADA I recounted that when he questioned Respondent as to why he only arrested one individual initially, Respondent was insistent that he had discretion over who to arrest. (Tr. 42-43). DeFazio further testified that ADA I had told him that Respondent was difficult to understand because of his accent and that, as a result, ADA I had to repeat himself multiple times. (Tr. 56-57).

Respondent admitted that this conversation became loud but testified that he never cursed at or insulted ADA I. (Tr. 86-87). He felt that raised voices weren't unusual in this situation as police officers and district attorneys sometimes disagree regarding charges. (*Id.*). He further explained that his voice was raised for other reasons as well, stating "I was trying to talk real slow because I have a very thick accent and sometimes I have to raise my voice for people to hear me and understand what I'm saying." (*Id.*). Additionally, Respondent stated that he took ADA I's phone call in the

lodge area by the prisoner cells where it was "very loud" as there were about twenty people in the cells at that time. (Tr. 86-87).

This tribunal credits Respondent's testimony that he was speaking loudly because he was conscious of his accent and was in a busy, loud area of the precinct. DeFazio's testimony that ADA 1 had to repeat himself so that he could understand him supports this testimony, at least in part.

Moreover, the statement allegedly uttered, "I know the facts of my case and I have discretion on who I arrest on the street," is not discourteous in and of itself. It is important to note that ADA 1 was not Respondent's supervisor but an ADA working collaboratively with Respondent on drafting a complaint. In such a situation, differences of opinion can be expressed without it amounting to discourtesy. Without live testimony from ADA 1, I am unable to find discourtesy as the hearsay statement is not discourteous on its face and DeFazio's testimony regarding ADA 1 having difficulty understanding Respondent due to his accent weighs against a finding of discourtesy due to Respondent's raised voice.

Accordingly, I find Respondent Not Guilty of the charge set forth in Specification 1.

Specification 2: Discourtesy to Sergeant Sylvia Smith

Respondent is charged with being discourteous to Sergeant Sylvia Smith, in that Respondent raised his voice in a loud manner. Based on the testimony of Sergeant Smith, I find Respondent Guilty of Specification 2.

Sergeant Smith testified that she was working as the desk officer in the Early Case Assessment Bureau ("ECAB") on the evening of February 14, 2010. (Tr. 13). She

explained that she was informed by the chief of ECAB, Teresa Shanahan, that ADA I had been given potentially conflicting information from Respondent regarding an arrest. (Tr. 13-14). Smith stated that she telephoned Respondent and told him that he needed to get his facts straight. (Tr. 14). She testified that he responded that she could not tell him what to do and said something to the effect of "don't tell me how to do [my] fucking case." (Tr. 15). She described his tone as "loud" and "very discourteous." (Tr. 15). She further testified that she then called Respondent's command and subsequently spoke to IAB because she wanted to issue him a command discipline. (Tr. 16).

Conversely, Respondent testified that he never spoke to Sergeant Smith. (Tr. 90). He stated that the only woman he spoke to about the case was an ADA. (Tr. 90, 97). He insisted that he could not have confused Sergeant Smith for the ADA because the woman he spoke to identified herself as an ADA and because members of the Department who work in ECAB have different phone numbers. (Id.). He further testified that he never told anyone anything to the effect of "I know my fucking case." (Tr. 107).

As Respondent and Smith do not even agree on whether a conversation occurred, this specification turns entirely on the credibility of the witnesses. In analyzing the credibility of each witness, this tribunal may consider such factors as witness demeanor, consistency of a witness' testimony, supporting or corroborating evidence, witness motivation, bias or prejudice, and the degree to which a witness' testimony comports with common sense and human experience. *Hansley v. Department of Correction*, 69 A.D.2d 545, 564 N.Y.S.2d 398 (1st Dep't 1991).

I credit the testimony of Sergeant Smith, a twenty-three year member of the Department, who testified in a direct, straightforward manner regarding her conversation

with Respondent and was not shown to have any personal animosity toward Respondent or motive to lie. It strains credulity to believe that Sergeant Smith, who has no personal stake in the outcome of this matter, would recap specific details of this conversation for the court if she had never actually spoken to Respondent, as Respondent insists. Further, nothing about Smith's testimony revealed any uncertainty or hesitation about whether she had spoken to Respondent.

While it is possible that Respondent may have been confused as to whether he was speaking to a Department supervisor or an ADA, the statement that Smith testified that Respondent made, "Don't tell me how to do [my] fucking case," is unequivocally discourteous on its face. Further, although the tribunal believes Respondent's testimony that he was speaking loudly at points because of his accent and because the room where he was located was loud, I also credit Smith's testimony that when she was asking him about possible conflicting statements, Respondent's tone grew not only loud but also discourteous.

Accordingly, I find Respondent Guilty of discourtesy as set forth in Specification 2.

Specification 3: Unshaven While in Uniform

Respondent is charged with being unshaven while in uniform on May 12, 2011. P.G. 203-07, page 2, paragraph 10 provides, "Do not grow a beard except under the following circumstances: a. When required because of a medical condition, a beard may be grown with written approval of the Police Surgeon concerned and the Commanding Officer, Medical Division. (Copy of written approval will be in possession of member of

the service whenever in uniform.)” As Respondent admitted to being unshaven when he reported for his GO-15 hearing on May 12, 2011, he is found Guilty as charged.

Respondent explained that he has a skin condition, which he characterized as “ingrown hair” that prevents him from putting a blade to his face and requires that he shave with a clipper. (Tr. 96). His note explaining the same had expired and Respondent testified that the Department had recently altered the policy and required a diagnosis from a private dermatologist in order to obtain a note. An appointment with his dermatologist took several weeks. (Id.).

Moreover, Respondent testified that he finished his tour at approximately 0130 hours and stayed at the precinct that night rather than drive to Staten Island and commute back for the interview the next day. (Tr. 95). To his credit, Respondent acknowledged “rules are rules” and understood that he violated the Patrol Guide provision requiring him to be clean shaven. (Tr. 99).

Respondent is therefore Guilty of Specification 3.

Specification 4: Incomplete Activity Log Entries

Respondent is charged with failing to provide a clear indication of the identity of the individual he placed under arrest and the location of the arrest in his Activity Log, as required. Having examined the portion of the Activity Log pertaining to the relevant date and time, February 14, 2010 at 2245 hours to February 15, 2010 at 0015 hours, I find Respondent Guilty of Specification 4.

The Activity Log States as follows:

2245: Car Stop F/O (front of) 639 Putnam Avenue, 1979 Cadillac 4 door
registration # 9DFY46 Driver: [REDACTED]

2250: One under at above location

2301: 84 at 81 Precinct
0015: One under related to previous arrest drug possession CPCS
(Department's Exhibit ("DX") 1).

The Activity Log does not explain why the car was initially stopped. It does not clearly denote who was arrested at 2250 hours. Most glaringly, it does not provide any information regarding the identity of the individual arrested at 0015 hours or specifically state where the arrest occurred. (DX 1, Tr. 100).

Respondent testified that he believed the Activity Log was a tool for his own personal recollection and that the information he wrote gave him all he needed to jog his memory regarding the case. (Tr. 93-94, 100-01). His counsel pointed out that there is no blueprint regarding how to fill out the Activity Log and further argued that the fact that Respondent was able to recall the details of the event fifteen months later at his GO-15 interview is proof that his notes were sufficient. (Tr. 123-24).

The purpose of the Activity Log is not simply to jog an officer's memory but "to accurately record activities of uniformed members of the service and aid in the evaluation of such members." P.G. 212-08. While it is true that the Patrol Guide does not provide a blueprint of exactly how to fill out the Activity Log, it is instructive as to what should be recorded. Patrol Guide 212-08 states that "information pertinent to an assignment or observed/suspected violation of law, i.e., action taken, narrative, disposition, forms prepared with identifying serial number . . ." is to be recorded.

The name of an individual arrested and the location of arrest are clearly pertinent pieces of information regarding a suspected violation of law and subsequent action taken. It is the opinion of this tribunal that the reason for the initial stop is also highly pertinent information as the broken headlight was the initial observed violation. Respondent's

recollection of these details at a later date does not absolve him of his responsibility to record such information in his Activity Log.

As the pages of the Activity Log in evidence show that Respondent failed to record pertinent information, Respondent is found Guilty of Specification 4.

Specification 5: Failure to Conduct a Proper Investigation

Respondent is charged with failing to conduct a proper investigation by neglecting to check a purse in the possession of an arrestee at the scene to determine the true and correct owner. It is undisputed that Respondent did not check the purse until he arrived back at the Precinct with the arrestee who he believed to be the purse owner. (Tr. 101). Because Respondent's actions at the scene were proper and reasonable under the circumstances, I find Respondent Not Guilty of Specification 5.

After the driver claimed ownership of the purse containing marijuana in the backseat, Respondent asserted that he did not arrest the other individuals in the car because he had a "clear admission of the possession." (Tr. 77). He asserted that given the driver's admission, it would not "be an honest arrest" to arrest the other individuals. (Id.). Respondent further testified that he did not check the purse at the scene due to safety concerns. (Tr. 102). He believed it was better to quickly return to the precinct with the arrestee and the evidence as over seventy-five percent of fatalities occur during traffic stops.

Given the safety concerns associated with a car stop, coupled with the admission of ownership of the bag from the driver, this tribunal finds that Respondent's failure to go through the bag at the scene does not constitute actionable misconduct. Respondent's course of action in arresting the driver who had stated that she was the owner of the bag

and transporting both her and the bag back to the stationhouse as safely and quickly as possible was a prudent one. He took proper investigatory steps at the scene and then took proper investigatory steps at the stationhouse when the driver subsequently revealed she was not the owner of the bag.

Accordingly, Respondent is Not Guilty of Specification 5.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y. 2d 222 (1974).

Respondent was appointed to the Department on January 9, 2006. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of discourtesy to a sergeant. Discourtesy to a supervisor generally warrants a penalty of at least ten vacation days even where the Respondent had no prior disciplinary history, as is the case in the instant matter. For example, in *Case No. 2010-2021* (Feb. 19, 2013), a 15-year police officer with no prior disciplinary record forfeited ten vacation days after he was found guilty of being discourteous to a sergeant in the roll call room in front of other members of the service based on his tone of voice and his demeanor in addressing the sergeant. In *Case No. 2012-6774* (June 6, 2013), an eight-year officer who had no prior disciplinary record forfeited ten vacation days after he was found guilty of discourteously telling a sergeant, "If I'm such a perp (perpetrator), I should slam this door in your face like a perp."

Respondent has also been found guilty of appearing for duty unshaven and failing to record pertinent information regarding an arrest in his Activity Log. In previous cases, those offenses have warranted a penalty of five (5) vacation days. *See Case No. 2011-4929* (July 30, 2013), (twelve-year police officer with no prior disciplinary record negotiated a penalty of five vacation days for failing to appear before the medical division to properly renew his shaving restriction excusal and appearing for duty in an unshaven condition); *Case No. 2004-79908* (December 15, 2004), (twelve-year member with one prior disciplinary adjudication forfeits five vacation days for failing to record the confinement of a suspect in a holding cell).

The Department requested a penalty of ten (10) vacation days for the five specifications charged. Two of those charges have been dismissed. Taking into account Respondent's lack of formal disciplinary history, consistently high performance evaluations and twelve medals of recognition and crediting Respondent's straightforward accounts of both the circumstances surrounding the night of the arrests and the reasons why he reported for duty unshaven, the tribunal recommends that Respondent forfeit seven (7) vacation days.

Respectfully submitted,

RM

Claudia Daniels-DePeyster

Claudia Daniels-DePeyster
Assistant Deputy Commissioner - Trials

APPROVED

SEP 10 2017
William J. Bratton
WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER DIERY LOUIS
TAX REGISTRY NO. 940395
DISCIPLINARY CASE NO. 2011-5115

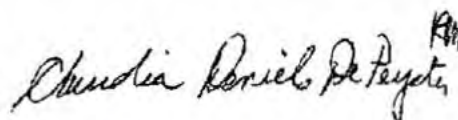
Respondent was appointed to the Department on January 9, 2006. His last three annual evaluations were as follows: he received an overall rating of 4.0 "Highly Competent" in 2014 and 2013 and a 4.5 rating of "Extremely Competent/Highly Competent" in 2012. He has twelve medals, eleven for Excellent Police Duty and one for Meritorious Police Duty.

Respondent has no prior formal disciplinary record. He is currently on Level II Force Monitoring and has been since July 15, 2013 for having three or more CCRB complaints in one year. From February 8, 2008 to August 27, 2008, Respondent was on Level I Force Monitoring for having three or more CCRB complaints in one year. That monitoring was upgraded to Level II Disciplinary Monitoring on August 27, 2008 and remained in place until February 27, 2010. Respondent was subsequently placed on Level II Force Monitoring from October 5, 2010 to October 15, 2010 for having three or more CCRB complaints in one year.

[REDACTED]

[REDACTED]

For your consideration.



Claudia Daniels-DePeyster
Assistant Deputy Commissioner - Trials